

Mat.App./2/2022 on 1 April, 2025

GAHC010073942021

IN THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM & ARUNACHAL PRADESH)

Mat.App./2/2022

Ashok Ganguly,
S/o Late Sunil Ganguly,
Resident of Sankar Dev Nagar,
PO and PS Makum JN
District- Tinsukia

.....Appellant

-Versus-

Sima Ganguly,
D/o Jagodish Chakravorty,
Resident of South Masli,
PO Bhanga Bazar, Badarpur,
District-Karimganj, Assam

.....Respondent

For Appellant : Mr. M. A. Choudhury, Advocate

For Respondent : Mr. A. Dhar, Advocate

Date of Judgment : 01.04.2025

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BEFORE
HON'BLE MR. JUSTICE MRIDUL KUMAR KALITA
JUDGMENT

(MRIDUL KUMAR KALITA, J)

1. Heard Mr. M. A. Choudhury, the learned counsel for the appellant. Also heard Mr. A. Dhar, the learned counsel for the respondent.

2. This appeal under Section 28 of the Hindu Marriage Act, 1955 has been preferred by the appellant/husband Shri Ashok Ganguly, impugning the judgment dated 11.02.2021 passed by the Court of the learned District Judge, Karimganj, in Title Suit (D) No. 81/2014, whereby the Trial Court dismissed the divorce suit filed by the appellant for a decree of divorce against the respondent.

3. The facts relevant for consideration of the instant matrimonial appeal, in brief, are that the appellant/husband had filed a divorce suit before the Court of the learned District Judge, Karimganj against the respondent/wife, Smti Sima Ganguly under Section 13 of the Hindu Marriage Act, 1955 for a decree of divorce and alternatively for a decree for judicial separation on the grounds of cruelty and desertion.

4. In the plaint filed by the appellant/husband before the Trial Court, it was averred that the respondent is the legally married wife of the appellant and their marriage was solemnized on 11.10.2004 at Kancha Kanti Temple, Silchar according to Hindu rites and rituals. After their marriage, both Mat.App./2/2022 Page 2 the parties cohabited as husband and wife at Badarpur Railway GRP Colony, i.e., the place where the appellant was working at that time. Out of their wedlock, a girl child was born (Annapurna Ganguly), who was about 10(ten) years of age when the divorce suit was filed by the appellant. The appellant had pleaded in his plaint that after the marriage, the respondent used to frequently go to her paternal house and used to live with them and the parents of the respondent used to interfere in the matrimonial life of the parties, which caused matrimonial discord amongst the appellant and the respondent.

5. The appellant has stated in his plaint that on 29.08.2006, the respondent, on the instigation of her parents, instituted a criminal case under Section 498A of the Indian Penal Code, which was registered as G.R. Case No. 771/2006. In the said case, the appellant was arrested and was detained in jail custody. It was further stated by the appellant that ultimately the appellant was acquitted by the Trial Court in the said case by its judgment dated 26.02.2014.

6. It was also alleged that due to filing of the false case, the matrimonial relationship between the parties deteriorated. After his release from jail custody, the appellant was transferred to Baksa and since 29.08.2006 there is no matrimonial relationship between the appellant and the respondent. It was further averred in the plaint, by the appellant/husband that he tried his level best to resolve the matrimonial dispute and asked the respondent to come to his Mat.App./2/2022 Page 3 place but she paid no heed to the same. In the meanwhile, the respondent also filed a case under Section 125 of the Code of Criminal Procedure, 1973, which was registered as Misc. Case No. 236/2006, where she claimed for monthly maintenance allowance for her as well as for her daughter from the appellant.

7. It is pertinent to mention herein that the appellant also has a son, from his earlier marriage, namely, Abhinandan Ganguly, who was aged about 19(nineteen) years when the divorce suit was filed. It was after the death of his first wife, that the appellant married the present respondent.

8. The respondent/wife contested the divorce suit by filing written statement, wherein apart from making usual defence pleas, she has stated that the appellant/husband had a doubtful relationship with one Sathi Das, who was the maid servant of the appellant working in his house and when the respondent protested against such illicit relationship of the appellant, she was subjected to physical abuse.

9. It was also pleaded in her written statement that in respect of the said issue a local meeting (Bichar) also took place, wherein the appellant admitted of having relationship with the said lady and assured not to continue the same or to assault the respondent. However, in spite of such assurance, he continued to do so. It was also stated by the respondent in her written statement that again when the respondent protested against the extra marital relationship of the appellant on 28.08.2006, the appellant tried to pour kerosene Mat.App./2/2022 Page 4 and burn the respondent. However, due to intervention of the neighboring people, she could be saved. On the following day i.e., on 29.08.2006, the respondent lodged an FIR before the Badarpur Police Station, which was registered as Badarpur P. S. Case No. 113/2006.

10. It was further stated in her written statement, by the respondent that after filing of the aforesaid G. R. Case, there was an endeavor for amicable settlement and the appellant approached the respondent through well-wishers for the amicable settlement of their matrimonial dispute and accordingly, the respondent filed a "no objection" before the Court for bail of the appellant and as such, bail was granted to him.

11. However, even after getting bail the appellant did not take any step for starting the matrimonial relationship again. The respondent also contended that as she did not state anything against the appellant in the pending case under Section 498A of the Indian Penal Code, the appellant was acquitted in the said case. She has also stated that there are no ingredients of cruelty as well as desertion in the petition filed under Section 13 of the Hindu Marriage Act, 1955 by the appellant.

12. On the basis of the pleadings filed by both the parties, the Trial Court framed the following issues:

(i) Whether the plaintiff is entitled to get a decree of divorce as prayed for? ;

(ii) What other relief/reliefs is the plaintiff entitled?

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13. In support of his case, the appellant/husband examined himself as PW-1 and one Johar Kanti Mazumdar as PW-2. On the other hand, the respondent/wife examined herself as DW-

1 and one Smt. Dipti Choudhury as DW-2.

14. However, after considering the evidence adducted by both the sides as well as after considering the submissions of the learned counsel for both the sides, the Trial Court decided both the issues against the appellant/husband and dismissed the divorce suit filed by him.

15. Mr. M. A. Choudhury, the learned counsel for the appellant has submitted that the Trial Court erred in dismissing the divorce suit filed by the appellant on the ground that it found no evidence of physical cruelty as well as desertion by the respondent. He submits that the Trial Court failed to take into consideration the fact that by filing a false criminal case against the appellant, the respondent subjected him to mental cruelty.

16. He submits that the Trial Court was wrong in coming to the finding that the appellant was acquitted in the G.R. Case No. 771/2006 only because of the fact that a "no objection" was filed by the respondent to the bail application for the appellant and the said factor influenced the decision of the Court while acquitting the appellant.

17. The learned counsel for the appellant submits that the Trial Court failed to take into consideration the fact that in G. R. Case No. 771/2006, 08(eight) prosecution witnesses were examined by the prosecution side including the respondent Mat.App./2/2022 Page 6 and as the prosecution witnesses failed to prove the charge against the appellant under Section 498A of the Indian Penal Code, he was acquitted.

18. He submits that compelling the appellant to undergo the rigours of the criminal trial, in which ultimately he got a verdict of acquittal, is in itself an act of mental cruelty by the respondent and on that ground only the appellant was entitled to get a decree of divorce.

19. In respect of his submission, the learned counsel for the appellant had cited the ruling of the Apex Court in the case of "Rani Narasimha Sastry Vs. Rani Suneela Rani"

reported in (2020) 18 SCC 247. The learned counsel for the appellant had also relied upon the ruling of the Division Bench of this Court in the case of "Lalit Sinha Vs. Smti Sandhya Sinha" reported in (2022) 2 GLT 31 where the Division Bench relying upon the above-mentioned case of "Rani Narasimha Sastry" (Supra) granted the decree of divorce to the husband on the ground that subjecting the appellant to undergo trial in which ultimately he is acquitted would be regarded as an act of mental cruelty by the wife.

20. The learned counsel for the appellant has also submitted that the appellant and the respondent are living separately since the year 2006 and this long separation has resulted into a matrimonial discord, which is beyond repair, therefore, he submits that this long separation is in itself a ground, which may also be regarded as an aspect of mental cruelty and on that ground also the appellant is entitled to get the decree of Mat.App./2/2022 Page 7 divorce. In support of his submission, the learned counsel for the appellant has cited a ruling of the Apex Court in the case of "Samar Ghosh Vs. Jaya Ghosh" reported in (2007) 4 SSC 511, wherein it was observed as follows:

"101.(xiv) Where there has been a long period of continuous separation, it may fairly be concluded that the matrimonial bond is beyond repair. The marriage becomes a fiction, though supported by a legal tie. By refusing to sever that tie the law in such cases does not serve the sanctity of marriage; on the contrary, it shows scant regard for the feelings and emotions of the parties in such like situation, it may lead to cruelty."

21. The learned counsel for the appellant has submitted that in the instant case, the respondent and the appellant are living separately for almost 19(nineteen) years and their marriage has reached beyond point of repair and these aspects were not considered by the Trial Court. Hence, he submits that the impugned judgment of the Trial Court is liable to be set aside and the respondent is entitled to get a decree of divorce on the ground of mental cruelty and desertion.

22. On the other hand Mr. A. Dhar, the learned counsel for the respondent has submitted that the Trial Court has rightly dismissed the divorce suit filed by the appellant as he failed to Mat.App./2/2022 Page 8 prove the grounds of cruelty and desertion as pleaded by him in his plaint.

23. The learned counsel for the respondent has submitted that the appellant has mainly filed this appeal on the ground that the Trial Court failed to take into consideration that the appellant was acquitted in the G. R. Case No. 771/2006, under Section 498A of the Indian Penal Code, which was registered on the basis of an FIR lodged by the present respondent. However, he submits that the appellant has suppressed the fact that on 31.08.2006, during the pendency of the Badarpur P. S. Case No. 113/2006, corresponding to G. R. Case No. 771/2006, the respondent filed an application, which was registered as Petition No. 7116 dated 31.08.2006, before the Court of the learned Additional Chief Judicial Magistrate, Karimganj, stating therein that on account of some misunderstanding with her husband she lodged an FIR and at the intervention of the well-wishers, the matter has been resolved and she want to go with her husband and as such, the appellant was granted bail by the Court on 31.08.2006 itself.

24. The learned counsel for the respondent has further submitted that on the same day i.e., 31.08.2006 itself, one Sathi Das claiming himself to be the wife of the appellant also filed another petition which was registered Petition No. 7112 dated 31.08.2006 before the learned Additional Chief Judicial Magistrate, Karimganj, praying for bail of the appellant.

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25. The learned counsel for the respondent submits that filing of bail application by Sathi Das, wherein she claimed herself to be the wife of the appellant itself shows that the allegation of extra-marital affair by the respondent against the appellant was not without any basis.

26. The learned counsel for the respondent has submitted that while acquitting the appellant in the G. R. Case No. 771/2006, the Court of learned Additional Chief Judicial Magistrate, Karimganj has observed that the prosecution side had failed to prove the charges beyond all reasonable doubt. It also took into consideration the fact that the criminal case was filed on account of some

misunderstanding between the respondent and the appellant, therefore, he submits that it is not a case, where false accusations were made against the appellant by the respondent, while filing the FIR against him.

27. The learned counsel for the respondent submits that the circumstances were such that the respondent was compelled to lodge an FIR against the appellant and in the judgment passed in G. R. Case No. 771/2006, the Court of learned Additional Chief Judicial Magistrate, Karimganj did not make any observation that the allegations made by the informant are false, rather the appellant was given benefit of doubt as the prosecution side failed to prove the charges beyond all reasonable doubt.

28. The learned counsel for the respondent has also submitted that after release of the appellant he was transferred to Baksa and there is no evidence to show that he attempted to bring Mat.App./2/2022 Page 10 the respondent to her matrimonial house and therefore, the learned counsel for the respondent submits that the appellant has failed to show that there was any animus deserendi on the part of the respondent to stay away from her husband.

29. The learned counsel for the respondent has also submitted that mere long separation, in itself, may not entitle the appellant to get a decree of divorce, unless, it is shown that the respondent was at fault on some count and the appellant is able to prove any of the ground mentioned in Section 13 of the Hindu Marriage Act, 1955 to get a decree of divorce.

30. The learned counsel for the respondent has also referred to Exhibit-B exhibited by the respondent before the Trial Court which is the order dated 31.08.2006 passed by the Court of learned Additional Chief Judicial Magistrate, Karimganj in Badarpur P. S. Case No. 113/2006, which shows that one Sathi Das had also filed an application for bail of the appellant Ashok Ganguly claiming herself to be the wife of the appellant. He also submitted that from the said order itself it would appear that as because the respondent submitted before the Court that the matter has been amicably settled, the appellant was granted bail in that case.

31. I have considered the submission made by the learned counsel for both sides and have gone through the materials on record including the records of the Title Suit (D) No. 81/2014, which was requisitioned in connection with the instant appeal.

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32. The appellant has assailed the impugned judgment in this appeal mainly on the ground that by filing the G.R. Case No. 771/2006 (corresponding to Badarpur P. S. Case No. 113/2006) under Section 498A of the Indian Penal Code, the respondent has subjected the appellant to mental cruelty and said fact has not been taken into consideration by the Trial Court.

33. The term cruelty as mentioned in Section 13(1)(i-a) of the Hindu Marriage Act, 1955 may mean physical cruelty or mental cruelty.

34. In this regard, the observation made by the Apex Court in the case of "Srinivas Rao Vs. D. A. Deepa" reported in (2013) 5 SCC 226 are relevant and the same are reproduced herein below:

"10. Under Section 13(1)(i-a) of the Hindu Marriage Act, 1955, a marriage can be dissolved by a decree of divorce on a petition presented either by the husband or the wife on the ground that the other party has, after solemnisation of the marriage, treated the petitioner with cruelty. In a series of judgments this Court has repeatedly stated the meaning and outlined the scope of the term "cruelty". Cruelty is evident where one spouse has so treated the other and manifested such feelings towards her or him as to cause in her or his mind reasonable apprehension that it will be harmful or injurious to live with the other spouse. Cruelty may be physical or mental."

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35. However, there cannot be any fix standard to judge as to what may amount to mental cruelty. The facts of each case have to be considered to ascertain whether mental cruelty has been perpetrated by any of the party upon another by any of her or his action or inaction. Though, making unfounded, indecent defamatory allegations against the spouse by the another spouse may amount to mental cruelty. Similarly, filing of criminal cases on the basis of unsubstantiated allegations by one of the spouse against another spouse may also amount to mental cruelty.

36. However, before coming to the conclusion that the respondent has subjected the appellant to mental cruelty, in the instant case, the facts of the case are to be examined. In the instant case, the respondent had lodged an FIR against the appellant alleging that she was subjected to torture by the appellant and it was also alleged that the appellant is having an illicit affair with the maid of the house namely, Sathi Das and ultimately, the appellant was acquitted of said charges in G.R. Case No. 771/2006 by the Court of the learned Additional Chief Judicial Magistrate, Karimganj.

37. As the appellant was acquitted of the charges levelled by the respondent in the criminal case, it has been projected that the appellant was subjected to cruelty by compelling the appellant to undergo trial in a case where ultimately he was acquitted.

38. However, if we peruse the judgment dated 26.02.2014, passed by the Court of the learned Additional Chief Judicial Mat.App./2/2022 Page 13 Magistrate, Karimganj in G.R. Case No. 771/2006, it appears that the learned Additional Chief Judicial Magistrate, Karimganj, while passing the aforesaid judgment took into consideration the fact that the present respondent while deposing as PW-1 in the said case has deposed during cross- examination that she had filed a petition before the Court that matter has been amicably settled and the case was lodged due to misunderstanding.

39. The present respondent, while deposing as a prosecution witness in G. R. Case No. 771/2006 has deposed that her husband was in the house of Sathi Das and when the respondent protested to the same she was abused and assaulted by the appellant. The Trial Court, did not make any comment regarding the truthfulness or falsity of this testimony, therefore, what was deposed by the respondent cannot be treated as false merely because of the fact that the appellant was acquitted in the said case.

40. It also appears that the appellant was acquitted in the said case mainly because the prosecution side failed to prove that there was demand of dowry by the appellant (accused). The allegation of demand of dowry was never made by the present respondent (wife) while lodging the FIR against the appellant.

41. It also appears that the appellant was acquitted as the prosecution side failed to prove the charges under Section 498A of the Indian Penal Code beyond reasonable doubt.

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42. It is pertinent to mention herein that there is no observation in the said judgment that the allegation made by the present respondent (wife) that the appellant was found in the house of Sathi Das and that the appellant assaulted and tried to pour kerosene on her is false allegation.

43. Further, what is relevant in this case is that the respondent while deposing as DW-1, in the Title Suit (D) No. 81/2014, has exhibited the certified copy of the order dated 31.08.2006 passed by the learned Additional Chief Judicial Magistrate, Karimganj in Badarpur P. S. Case No. 113/2006, which shows that one Sathi Das claiming herself to be the wife of the present appellant also filed a bail application praying for bail of the appellant in the case, which was registered on the basis of the FIR lodged by the present appellant. From the aforesaid order of the learned Additional Chief Judicial Magistrate, Karimganj, it appears that the allegations regarding Sathi Das made by the present respondent in her evidence before the Trial Court may not be considered as absolutely false allegation.

44. In the rulings cited by the learned counsel for the appellant, the lodging of criminal cases, on the basis of unsubstantiated allegation against the husband, was regarded as an act of mental cruelty. However, that does not mean in every case, where a case under Section 498A of the Indian Penal Code results into an acquittal, the act of lodging of such case by the wife against the husband, would be treated as mental cruelty within the meaning of Section 13(1)(i-a) of the Hindu Marriage Act, 1955, irrespective of the facts and circumstances of the said case.

45. It is pertinent to note that in G.R. Case No. 771/2006, the appellant was tried for charges under Section 498A of the Indian Penal Code and he was acquitted because the allegation of the demand of dowry, which is required for proving of such charge, was not made in this case.

46. As discussed hereinabove, there was no allegation regarding demand of dowry by the respondent/wife against the present appellant/husband. The main allegation against the appellant was that he was having illicit relationship with one Sathi Das and when the respondent objected to the same, she was assaulted by him.

47. There is no finding in the judgment passed by the learned Additional Chief Judicial Magistrate, Karimganj, in G. R. Case No. 771/2006 that the allegation levelled against the appellant by the present respondent was false allegation. The appellant was acquitted of the charge under Section 498A of the Indian Penal Code mainly due to the absence of the demand of dowry, which is an essential ingredient for commission of an offence under Section 498A of the Indian Penal Code.

48. In view of above, this Court is of the considered opinion that the facts of the instant case are not such so that mere lodging of the FIR and acquittal of the appellant, on the failure to prove the essential ingredient of the demand of dowry, in G. R. Case No. 771/2006, may be regarded as an act of mental cruelty by the respondent, so as to grant the appellant a Mat.App./2/2022 Page 16 decree of divorce under Section 13(1) of the Hindu Marriage Act, 1955.

49. As regards, the long period of continuous separation being regarded as an element of mental cruelty, there is no doubt that such a long period of continuous separation between the appellant and the husband may result in a situation where matrimonial bond can be regarded as beyond repair, however, if the respondent (wife) is not found to be at fault for such long separation, the said long separation, in itself, may not be regarded as an act of cruelty by her.

50. Further, such a long separation, in absence of animus deserendi, on the part of the respondent would also not amount to an act of her deserting the appellant. In the instant case, it appear that after getting bail in G.R. Case No. 771/2006, the appellant was transferred to Baksa and thereafter, he went to the paternal house of the respondent wife, where she was living, only on two occasions and there is no evidence to show that he made an effort to take the responded with him to Baksa.

51. Thus, the mere fact that the respondent and the appellant are living separately since 28.08.2006, in itself, may not amount to desertion by the respondent, if the appellant fails to prove that the respondent intended to desert him. The appellant has not been able to show the animus deserendi on the part of the respondent to dessert him, so as to justify the grant of decree of divorce, on the ground of desertion, to the appellant.

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52. In view of the reasons mentioned and the discussions made in the foregoing paragraphs, this Court does not find any infirmity in the conclusion arrived at by the Trial Court in the impugned judgment that the appellant has failed to prove the ground of cruelty and desertion as required under Section 13 of the Hindu Marriage Act, 1955 and rejecting the prayer for grant of the decree of divorce to the appellant.

53. This appeal is, therefore, found devoid of any merit and accordingly, same is dismissed.

JUDGE

Comparing Assistant

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